gubernatorial or presidential approval. Unlike those, however, this bill is stirring nationwide debate due to its near-criminalisation of interfaith marriages. A marriage where either spouse has converted will be void in the eyes of the state. There's an exception, of course. For "*ghar wapasi*", largely understood to entail a "return" to Hinduism.

The bill—awaiting the Governor's nod—criminalises religious conversions by allurement, fraud, force, undue influence, misrepresentation, or marriage. These will constitute cognisable, non-bailable offences. Penalties range from 7-14 years in jail and Rs 5 lakh fine, scaling up to 10-20 years and Rs 10 lakh minimum for targeting minors, women, the differently abled, or members of Scheduled Castes/Tribes. The last is not irrelevant: there have been sporadic reports of tribal conversions to Christianity and the emergence of new churches in the southern districts.

Takeaways

- **Rajasthan passes new anti-conversion bill, hard provisions spawn debate**
- **Critics question the very need for law, also exclusion of *ghar wapasi***

Mass conversions and repeat offences draw even harsher sentences—20 years to life imprisonment, with fines going up to Rs 50 lakh. Properties and institutions found promoting unlawful conversion face confiscation, demolition, cancellable licence cancellation, and fines of up to Rs 1 crore. Foreign funding? Severe penalties.

Civil liberties groups, led by the PUCL, call special attention to a few red flags. One, "return to ancestral religion" is explicitly excluded. Two, the bill's broad definition of "allurement", with the natural potential it carries for harassment of minorities and interfaith couples. Three, the way the bill imposes even on what it calls 'voluntary' conversions a good dose of process as punishment: 90 days' advance declaration, including by the priest concerned, and an appearance before the authorities within 10 days of the act.

WHITHER CONGRESS?

If they condemn the bill as draconian and unconstitutional, the BJP strongly advocates for it, calling it essential to curb "forced" or "induced" conversions, particularly among poor, tribal and underprivileged groups. It claims such conversions are often a result of "greed, fear or deception". Meanwhile, the Congress evaded voting on the bill, citing an unrelated boycott, and is seen to have deliberately lost a chance to display its valour.

The critics question the very necessity for such bill, citing Rajasthan's relatively quieter record on community relations than many northern states. Save isolated cases, it has seen no systemic forced conversion or "love jihad". A conservative society means segregated living is the norm along all axes—that covers the minorities, about nine per cent of the population. So interfaith marriages, especially Hindu-Muslim, are rare anyway. Notable exceptions often serve to highlight the social pressures and stigma around such unions.

One such was the high-profile marriage of IAS officers Tina Dabi and Athar Aamir Khan—it ended in dissolution, both remarrying within their communities. The few known interfaith couples keep a low profile. In their time, they faced social resistance. Today, their counterparts would face modern secular law, whose high priests would annul their marriage. ■

By **Arkamoy Datta Majumdar**

THE BIJU JANATA DAL'S CONTROVERSIAL decision to abstain from the recent Vice-Presidential election has not entirely been without self-harm. The BJD, as with all such instances in the past, justified it as part of its "equal distance" policy from the BJP and the Congress. But distances are lengthening within the BJD itself, especially between Naveen Patnaik and a school of thought that sees his pragmatism as a sign of ideological and strategic timidity outside, a contrast to the iron hand he wields within the party.

On September 9, former Rajya Sabha MP and south Odisha strongman N. Bhaskar Rao brought the inner disaffection fully into the public eye by resigning from the BJD—quitting a formation he has been part of since 1974, having joined in those halcyon days of anti-Congressism, "inspired by the ideals of Biju Patnaik". District-level politics was the trigger, a reaction to the local leadership being overhauled, so the former CM's side belittled it as an inconsequential event. But signs on the ground don't quite match that reading. Rao's departure clearly carries weight far beyond the symbolic.

OLD COMRADE EXITS

A veteran of Odia politics and once a close Biju associate, Rao had built and nurtured the party's base in Rayagada, a stronghold district in southern Odisha. His grassroots connect, combined with his reputation as a "leader's leader", was visible as a mini-exodus followed in his wake: former SC/ST minister and ex-deputy speaker Lal Bihari Himirika, local body grandees as well as hundreds of supporters joined the departing cavalcade.

What's more, Rao and Himirika have now pledged to carry forward the old legacy under the banner of a new outfit, the Biju Swabhiman Manch, designed as a counter to what they describe as the BJD's declining internal democracy.